

26STCV05103 26STCV05103

County: los-angeles

Division: Civil Law and Motion

Department: 17

Hearing date: 2026-06-23

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Case Number: 26STCV05103 Hearing Date: June 23, 2026 Dept: 17

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

CITY OF INGLEWOOD

vs.

250 MARKET #199K,

L.P., et al.

Case

No.: 26STCV05103

Hearing Date: June 23, 2026

Plaintiff's motion for prejudgment possession is GRANTED.

On

2/13/2026, Plaintiff City of Inglewood (Plaintiff or the City) filed a
complaint in eminent domain against 250 Market #199K, LP, Super Trak
Corporation, Chicago Title Company, California United Bank, and O'Reilly Auto
Part.

On 2/26/2026, Plaintiff moved for an
order of prejudgment possession.

The motion is
unopposed.

Discussion

In order to avail itself of CCP

section 1255.410, Plaintiff's motion:

... shall describe the property of which

the plaintiff is seeking to take possession, which description may be by

reference to the complaint, and shall state the date after which the plaintiff

is seeking to take possession of the property. The motion shall include a

statement substantially in the following form: "You have the right to oppose

this motion for an order of possession of your property. If you oppose this

motion you must serve the plaintiff and file with the court a written

opposition to the motion within 30 days from the date you were served with this

motion." If the written opposition asserts a hardship, it shall be supported by a declaration signed under

penalty of perjury stating facts supporting the

hardship.

Then, pursuant to section 1255.410,

subdivision (d)(1), if the motion is not opposed within 30 days of service on

each defendant, then the Court shall make an order for possession of the

property if the court finds each of the following:

(A) The plaintiff is entitled to take the

property by eminent domain.

(B) The plaintiff has deposited pursuant to Article 1

(commencing with Section 1255.010) an amount that

satisfies the requirements of that article

Here, Plaintiff's motion complies

with all CCP section 1255.410 requirements.

Because no opposition was received within 30 days of

service, Plaintiff's motion will be granted if the Court finds that Plaintiff

is entitled to take the property by eminent domain, and Plaintiff has deposited

an amount that satisfies the requirements of Article 1. (CCP § 1255, subd.

(d)(1).)

I.

Entitlement

CCP section 1240.030

provides:

The power of eminent domain may be exercised to acquire

property for a proposed project only if all of the following are established:

(a) The public interest and necessity require

the project.

(b) The project is planned or located in the manner that

will be most compatible with the greatest public good and the least private

injury.

(c) The property sought to be acquired is necessary for

the project.

In establishing whether a

Plaintiff is entitled to take possession of a property by eminent domain,

It should be noted that the

determination of the plaintiff's right to take the property by eminent domain

is preliminary only. The granting of an order for possession does not prejudice

the defendant's right to demur to the complaint or to contest the taking.

Conversely, the denial of an order for possession does not require a dismissal

of the proceeding and does not prejudice the plaintiff's right to fully

litigate the issue if raised by the defendant.

(Legislative

Committee Comments to CCP §1255.410.)

Here, on 2/10/2026, the City's

governing body, its City Council (City Council) adopted Resolution No. 26-48,

which sets forth all of the required findings in order to adopt a resolution of

necessity. Because Plaintiff has made the requisite findings prior to adopting

the Resolution, there is a conclusive presumption that Plaintiff has the right

to acquire the Property through eminent domain. (See CCP §§ 1240.030,

1245.250.)

II.

Deposit

Here,

Plaintiff retained a qualified appraiser, Adam M. Bogorad, MAI and Director of

Valuation at Monument, to value the Subject Property being acquired. The

appraiser opined that the probable amount of just compensation for the taking

of the Subject Property is \$10,366,000.00. (See Summary Appraisal

Opinion to be filed concurrently with the Notice of Deposit once completed.)

Plaintiff is in the process of depositing with the State Treasurer the full

amount of the appraisal pursuant to Code of Civil Procedure section 1255.010

and will have completed the deposit before the hearing on this Motion. (Brenot

Decl., ¶ 4; and, see Notice of Deposit to be filed once the deposit has been completed.)

Plaintiff has met the requirements imposed by CCP section 1255.410, subdivision (d)(1). Namely, Plaintiff has submitted evidence establishing it is entitled to take the property by eminent domain, and that it has deposited required compensation.

Based on the foregoing, Plaintiff's motion for prejudgment possession is granted.

It is so ordered.

Dated: June

, 2026

Hon. Jon R.

Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must

send an email to the court at

by 4 p.m. the day prior as directed by the instructions provided on the court

website at www.lacourt.org. If a party submits

on the tentative, the party's email must include the case number and must

identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this

tentative as the final order. If the department

does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed

off calendar. For more information, please contact the court clerk at (213)

633-0517.